

TRUSTS

IN RE: BARBARA WEAVER TRUST & SUB TRUSTS

CASE NUMBER: 23PB-0031997

This matter is on calendar for hearing on a Notice of Motion and Motion to Set Aside and Vacate a Judgment. The matter has been properly noticed with proof of service on file. Respondent Deborah Sims has filed an objection. The Motion requests that the Court set aside and vacate (1) the ruling of February 23, 2026, which denied Petitioner's Petition to Resolve Issues Identified in Case 31997 Objection to Trust Accounting Serviced on July 29, 2024, for lack of standing; and (2) the judgment issued on April 14, 2026, which denied Petitioner's motion for reconsideration of the February 23, 2026, ruling.

The motion is filed pursuant to CCP § 663a. Under CCP § 663a, the court's power to rule on the motion expires 75 days from the mailing of notice of entry of the judgment by the clerk of the court, or 75 days after service upon the moving party by any party of written notice of entry of judgment, whichever date is earlier. If notice has not been given, 75 days after the filing of the first notice of intention to move to vacate judgment, the effect is a denial of the motion. While Respondent did not serve a copy of the ruling to Petitioner until March 13, 2026, the clerk's certificate of mailing of the February 23, 2026, ruling indicates the ruling was provided to the parties on February 24, 2026. A motion to set aside and vacate the Court's order of February 23, 2026, must have been filed by May 10, 2026. Here, the motion was filed on May 14, 2026. While the motion is timely regarding the order dated April 14, 2026, the Motion is **DENIED** as to the February 23, 2026, order as untimely.

CCP § 663 permits the Court to set aside and vacate a judgment and enter another judgment: (1) if the judgment is based on an incorrect legal basis not consistent with or supported by the facts or (2) if the judgment is not consistent or supported by the special verdict. Petitioner request to set aside and vacate the Court's order dated April 14, 2026, on the grounds that the Court failed to examine case 33032. The Court cannot find that the order dated April 14, 2026, was formed on an incorrect legal basis inconsistent with the facts provided. The Motion is **DENIED** as to the April 14, 2026, order. A proposed Order has been lodged and will be modified to reflect the Court's ruling. **No appearance is necessary on today's calendar.**

IN RE: BETTY EDITY JOHN TRUST

CASE NUMBER: 26PB-0033254

This matter is on calendar for further proceedings on a Petition to Compel Accounting, Surcharge and Redress of Breaches by Trustee, Removal of Trustee, Appointment of Successor Trustee, Damages, and Attorney's Fees and Costs. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED** to the extent that it requests to compel an accounting, removal of trustee, and appointment of a successor trustee. A proposed Order has been lodged and will be modified to reflect the Court's ruling. An evidentiary hearing will be required to establish the amount of any surcharge, damages, and attorney's fees and costs. **An appearance is necessary on today's calendar for setting of an evidentiary hearing.**

IN RE: DORMAN H. AND SHARON E. DENT REVOCABLE TRUST 2009

CASE NUMBER: CVPB21-0031299

This matter is on calendar for further proceedings regarding review/status. **An appearance is necessary on today's calendar.**